

Judgment Sheet
PESHAWAR HIGH COURT, PESHAWAR
(Judicial Department)

Writ Petition No. 4234-P/2026

Dr. Mian Saeed Ahmad CCPO, Peshawar etc
VS
Saleema Masood etc

JUDGMENT

Date of hearing: 19.05.2026.

Petitioners by: Mr. Muhammad Yousaf Orakzai, Advocate, alongwith petition No. 01 (Capital City Police Officer, Peshawar).

Mr. Niaz Muhammad, Additional Advocate General, for Provincial Government, alongwith Asif Sharif, DSP (Legal), Central Police Office, Peshawar.

Respondents by: Mr. Jamal Khan, Advocate.

SAHIBZADA ASADULLAH, J.- Through the instant writ petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioners seek indulgence of this Court with the following prayers:

“It is, therefore, humbly prayed that on acceptance of this petition, by invoking the Constitutional powers conferred under Article 199 of the Constitution, this august Court may very graciously be issue a

writ in favour of the petitioners by quashing/setting aside the impugned order dated 30.03.2026 in the best interest of justice.”

2. Brief facts of the case are that the respondents submitted an application under section 22-A Cr.P.C. before the learned Ex-officio Justice of Peace against alleged illegal harassment and abuse of authority by the police and sought directions to restrain the respondents (*petitioners herein*) from taking coercive action against them. It was alleged in the application that respondent Haji Allah Nazar had filed an application before the CCPO, Peshawar, asserting that he had entrusted an amount of 2 crore and 3 lac Afghanis, 3000 US Dollars, and Rs. 25,000/- to the father of the petitioners (*respondents herein*). According to the applicants, even if such claim was assumed to be correct, the matter pertained to a private monetary transaction of civil nature and did not constitute a criminal offence, however, despite lacking lawful authority, the DSP Gulbahar and the SHO of Police Station Gulbahar, Peshawar, overstepped their jurisdiction by repeatedly

summoning, threatening and pressurizing the petitioners and compelling them to enter into a compromise. The learned Ex-officio Justice of Peace, after taking into consideration the facts and circumstances of the case, directed the Inspector General of Police, Khyber Pakhtunkhwa, to take appropriate action and also to conduct departmental proceedings against the respondents (*petitioners herein*). Hence, the instant writ petition.

3. On the initial hearing of the matter, this Court deemed it appropriate to issue notice to the parties, consequently, learned counsel representing the parties entered appearance, and the matter was thereafter heard at considerable length through their respective learned counsel. Learned counsel for the petitioners vehemently contended that the impugned order is wholly unsustainable in the eye of law and suffers from patent illegality, having been passed without proper appreciation of the scope, extent, and limitations of the jurisdiction vested in the learned Ex-officio Justice of Peace under sections 22-A and 22-B Cr.P.C. It was argued

that the learned Ex-officio Justice of Peace travelled beyond the mandate conferred upon him by the legislature and, while doing so, exceeded the permissible bounds of his lawful authority and competence. Learned counsel further submitted that if such sweeping observations are allowed to remain intact, the same would not only adversely affect the morale of respectable police officers in the lawful discharge of their official functions, but would also tend to diminish their institutional dignity and authority in the eyes of those elements who are engaged in anti-state and anti-social activities. It was further canvassed that unless this Court intervenes and determines the extent of the jurisdiction exercisable by the learned Ex-officio Justice of Peace strictly in accordance with law, the consequences thereof would be far-reaching and deleterious in nature. According to the learned counsel, such an approach would, on one hand, embolden anti-state actors and criminal elements operating against the peace and stability of society, while, on the other hand, it would stigmatize, demoralize, and

discourage the police force from performing its lawful obligations with the confidence, courage, and firmness expected from a disciplined law enforcement institution. Learned counsel elaborated that police officials, while remaining within the four corners of law, are duty-bound to proceed against those individuals whose unlawful activities not only generate enormous illicit wealth through the exploitation and misery of innocent citizens, but who also, through their conduct, undermine the writ of the State and cast serious aspersions upon the efficacy and authority of law enforcement agencies in the country.

4. Conversely, learned counsel appearing on behalf of the respondents argued that it is, in fact, the petitioners and the officials subordinate to them who have persistently subjected the respondents, and several other similarly placed persons, to harassment, humiliation, and undue pressure. It was contended that numerous matters of a similar nature have repeatedly come before this Court, wherein directions had to be issued restraining police authorities from indulging in actions

contrary to law and from misusing their authority in a manner that becomes a source of embarrassment and humiliation for respectable citizens of the province. Learned counsel further maintained that the respondents have never engaged themselves in the unlawful activities alleged against them and that the accusations levelled are entirely unfounded and *mala fide* in nature, rather according to the learned counsel, the police authorities, for reasons best known to themselves, have continuously exerted pressure upon the respondents with the object of compelling them to abandon their lawful claims and to succumb to the dictates and wishes of the police functionaries concerned. It was emphatically argued that if such high-handedness and arbitrary exercise of authority by police officials is permitted to continue unchecked, the same would inevitably foster an atmosphere of fear, lawlessness, and administrative chaos, thereby seriously impairing the law and order situation of the province in particular and the country in general, a circumstance which, according to the learned counsel, the State can ill afford at

the present juncture. On the strength of the foregoing submissions, learned counsel for the respondents asserted that the learned Ex-officio Justice of Peace acted strictly within the sphere of his lawful authority while passing the impugned order, and that neither did he transgress the limits prescribed by law nor did he usurp or pre-empt the lawful competence otherwise vested in the law enforcement agencies.

5. After having heard the learned counsel for the parties at considerable length, this Court deems it appropriate, before embarking upon the merits of the controversy, to examine the true scope, extent, and contours of the jurisdiction vested in an Ex-officio Justice of Peace, and to determine the precise limits within which such authority may lawfully be exercised under sections 22-A and 22-B Cr.P.C. The controversy at hand cannot be adjudged in its correct legal perspective unless this Court, at the threshold, undertakes a careful inquiry into the statutory foundation, historical object, and jurisprudential rationale underlying the conferment of such powers

upon an Ex-officio Justice of Peace. The institution of Justice of Peace was conceived by the legislature not as a substitute for the regular judicial hierarchy, nor as a parallel forum exercising unrestricted supervisory authority over administrative or departmental affairs, but rather as a limited remedial mechanism intended to ensure that the process of criminal justice remains accessible, fair, and responsive to the grievances of citizens in situations where the ordinary machinery of law either fails to act or acts in derogation of its legal obligations. Therefore, the jurisdiction conferred under sections 22-A and 22-B Cr.P.C. is fundamentally corrective and facilitative in nature; it is neither punitive nor adjudicatory in the strict sense, nor does it confer upon an Ex-officio Justice of Peace an unrestricted authority to enter upon questions requiring detailed factual inquiry, appreciation of evidence, or determination of culpability. The statutory purpose underlying the conferment of such powers is to ensure that legal processes are not frustrated by executive inertia, abuse of authority, or arbitrary refusal to act, particularly

in matters concerning the recording of information relating to cognizable offences and the protection of fundamental rights guaranteed under the Constitution. However, equally well-settled is the principle that such jurisdiction remains circumscribed by the limitations expressly embodied in the statute and judicially evolved through precedent. An Ex-officio Justice of Peace is not intended to function as a parallel investigating authority, a disciplinary forum, or a substitute for competent departmental and judicial institutions established under the law. The moment such jurisdiction transgresses its lawful boundaries and enters into domains reserved for administrative, investigative, or adjudicatory bodies, the exercise of power risks losing its remedial character and assumes dimensions inconsistent with the constitutional doctrine of institutional discipline and separation of functions. Before adverting to the legality and sustainability of the impugned observations, it thus becomes indispensable for this Court to determine whether the learned Ex-officio Justice of Peace remained confined within the

statutory parameters governing his jurisdiction; whether the material placed before him was legally sufficient to justify the issuance of the impugned directions; whether the allegations levelled against the petitioners were supported by any tangible, credible, and legally recognizable material and whether the individual role, nexus, and responsibility of each petitioner was independently examined before directing initiation of departmental proceedings against them. This Court is equally required to examine whether the allegations and circumstances brought before the learned Ex-officio Justice of Peace were, in their very nature, of such character as could legitimately justify the issuance of directions not only for initiation of inquiry proceedings against the officials directly concerned, but also for extension of such directions to several senior-ranking police officers occupying responsible positions within the departmental hierarchy. These aspects assume immense significance for the reason that any judicial or quasi-judicial observation carrying adverse civil, professional, or departmental

consequences against public servants must necessarily be founded upon some tangible material, objective assessment, and judicial satisfaction derived from the record. The superior Courts, both within this jurisdiction and in comparative constitutional jurisprudence, have repeatedly emphasized that judicial and quasi-judicial authorities must exercise restraint while making observations capable of affecting the dignity, professional standing, or service career of public functionaries unless such findings are founded upon cogent material, lawful inquiry, and an opportunity of hearing consistent with the principles of natural justice. The august Supreme Court of India, while dealing with analogous questions concerning judicial propriety and restraint, has consistently held that adverse or stigmatic observations against officials ought not to be casually recorded unless the same are indispensable for the decision of the controversy and are supported by material tested in accordance with law. The underlying rationale behind this principle is deeply rooted in institutional fairness, the authority of Courts is strengthened

not by expansive commentary but by disciplined adherence to jurisdictional boundaries and procedural justice. In **State of Bihar v. P.P. Sharma (1992 Supp (1) SCC 222) (decided in 1992)**, the Supreme Court of India reiterated that *Courts must refrain from making sweeping and stigmatic observations against public servants in the absence of tested evidence, particularly where such remarks are likely to prejudice their service record or institutional reputation. It was emphasized that mere allegations, without evidentiary substantiation, cannot form the basis of adverse judicial findings.*

6. This Court is further constrained to observe that directions of such serious import, if issued without due inquiry, independent scrutiny, or proper appreciation of the individual role and conduct attributable to each respondent, may inadvertently create an impression that, though the learned Ex-officio Justice of Peace sought to advance the cause of justice, the process adopted in fact occasioned prejudice and hardship to the petitioners. It is manifest from the record that

neither were the evidentiary foundations allegedly constituting the basis of the impugned observations expressly identified and examined, nor does it appear that the individual status, role, or nexus of each petitioner with the accusations levelled before the learned Ex-officio Justice of Peace was separately evaluated in accordance with settled principles of law. What further weighs with this Court is whether the learned Ex-officio Justice of Peace undertook any meaningful effort to examine, test, or scrutinize the allegations through available material before arriving at the conclusion that no course remained open except to direct the competent department to proceed against all the petitioners departmentally. Such directions, carrying potentially stigmatic and career-affecting consequences, cannot ordinarily rest upon conjectures, generalized allegations, or unverified assertions, particularly where senior public officials are involved and where their professional standing, institutional reputation, and service career may be materially impacted. Therefore, if upon an objective appraisal of the

record this Court reaches the conclusion that neither was any cogent evidence collected, nor were the allegations subjected to judicial scrutiny and legal evaluation, and further that the complainant before the learned Ex-officio Justice of Peace failed to place before the Court any convincing material showing, on one hand, his own *bona fides*, and on the other, that the petitioners had in fact acted beyond the authority vested in them by law by humiliating, harassing, or depriving him of rights guaranteed under the Constitution, then the legality, propriety, and sustainability of the impugned directions would inevitably become a matter requiring the closest judicial scrutiny.

7. Having examined the legal contours governing the jurisdiction of an Ex-officio Justice of Peace, this Court must now proceed to ascertain the precise nature of the allegations which were brought before the learned Ex-officio Justice of Peace and which ultimately persuaded him to arrive at the conclusion that all the petitioners were not only responsible for the alleged misconduct but also liable to face departmental proceedings.

Therefore, it is necessary to carefully scrutinize the averments contained in the application so as to determine whether the material placed before the learned Ex-officio Justice of Peace was of such character, substance, and legal worth as could legitimately justify the issuance of directions carrying adverse civil and professional consequences for the petitioners. What appears to this Court to be particularly striking, and indeed somewhat paradoxical, is the fact that the learned Ex-officio Justice of Peace himself was not persuaded that the allegations levelled by the applicant constituted sufficient ground for issuance of directions regarding registration of an FIR, yet, simultaneously, on the basis of the very same allegations, the petitioners were virtually treated as blameworthy and directions for initiation of departmental proceedings against them came to be issued. These two conclusions, when placed side by side, create an apparent inconsistency which this Court cannot overlook. For if the material available before the learned Ex-officio Justice of Peace was insufficient to satisfy the threshold required

for directing criminal proceedings, the question naturally arises as to on what legal or factual basis the petitioners were considered liable to face departmental action carrying potentially stigmatic consequences. It is in this backdrop that this Court considered it necessary to examine whether the learned Ex-officio Justice of Peace, acting within the limits of his lawful jurisdiction, was justified in issuing such directions, particularly in circumstances where he himself had not arrived at the conclusion which the applicant evidently sought to invite regarding criminal culpability. Simultaneously, it was equally incumbent upon the applicant to show before this Court that the allegations levelled by him were supported by concrete, credible, and legally recognizable material sufficient to justify the issuance of such directions against the petitioners. However, upon careful examination of the application as well as the material appended therewith, this Court finds itself unable to discover any consistent, coherent, or substantiated factual foundation capable of sustaining the serious allegations of humiliation, harassment, and

unlawful deprivation of legal rights levelled against the petitioners/Police officials. The allegations appear to have been made in broad and generalized terms without furnishing the necessary particulars regarding time, place, manner, or the specific conduct allegedly attributable to each respondent. Neither was it clearly stated as to when the alleged humiliation or harassment took place, nor was any material brought on record indicating the circumstances under which the applicants were allegedly coerced, pressurized, or compelled to forego their lawful rights. When these aspects were tested on the touchstone of judicial scrutiny, this Court was constrained to observe that the application *prima facie* lacked the factual and evidentiary foundation necessary for issuance of directions of such serious consequence. No independent, cogent, or confidence-inspiring material was produced before the learned Ex-officio Justice of Peace, either in the form of documentary evidence or through any other legally recognizable source, which could reasonably justify a conclusion that the allegations levelled by the applicants were

genuine, substantiated, and attributable to all the respondents arrayed in the proceedings under section 22-A Cr.P.C.. This Court further notes with concern that petitioners ranging from the Station House Officer up to the Capital City Police Officer, all respectable public functionaries occupying different positions within the police hierarchy, were arrayed as respondents in a sweeping manner, yet neither from the contents of the application nor from the arguments advanced before this Court could it be ascertained as to which particular petitioner was responsible for which specific act, what exact role was allegedly played by each of them, who among them had allegedly humiliated or harassed the applicants, and, more importantly, what direct nexus the worthy CCPO, Peshawar had with the allegations levelled in the application. This Court made repeated attempts during the course of hearing to understand and identify the precise role attributable to each petitioner, however, despite extensive arguments, even the learned counsel appearing on behalf of the applicants/respondents remained unable to

satisfactorily explain or show, through reference to the record or any tangible material, the basis upon which such sweeping allegations and consequential directions could lawfully be sustained against all the petitioners collectively. Similar circumstances were dealt with by the Lahore High Court, in case titled **"Khizer Hayat Vs Inspector-General of Police (Punjab), Lahore" reported as 2005 PLD 470 Lahore**, wherein it was held as follows:

“15. As regards the jurisdiction of an ex-officio Justice of the Peace regarding complaints about unjustified harassment by the police in the absence of any criminal case having been registered against the aggrieved person we may observe on the basis of our experience that more often than not such complaints are couched in vague, unspecific and generalized terms and sometimes such complaints are motivated with considerations other than bona fide. An ex-officio Justice of the Peace must remain watchful, alert and vigilant in this respect while handling all such complaints. It goes without saying that an allegation of fact levelled in such a complaint must contain all the necessary factual details regarding the date, time and place of the alleged harassment as well as full particulars of the concerned police officer who is being complained against. In the absence of such

precision and exactitude in the complaint the relevant police officer, when required by the ex-officio Justice of the Peace to submit his comments, can remain contented with a bare and bald denial of the allegations leaving the ex-officio Justice of the Peace with no other option but to dismiss such a complaint as having remained unsubstantiated.”

8. We have never remained oblivious to the rights guaranteed under the law of the land and the Constitution of the Islamic Republic of Pakistan, which enshrine fundamental rights as the cornerstone of our constitutional order. As custodians of justice, this Court is not only duty-bound to respect and uphold those rights but is equally obligated to ensure that the corresponding duties and liabilities of State functionaries are enforced in accordance with law. However, at the same time, this Court cannot turn a blind eye to the equally settled principle that the enforcement of rights cannot be divorced from the observance of lawful conduct by those who invoke them, nor can law enforcement agencies be clothed with an unfettered or unregulated mandate that may, in effect, dilute constitutional protections guaranteed to citizens. It is a settled

proposition that the relationship between the citizen and the State is neither adversarial in perpetuity nor unidirectional in obligation, rather, it is founded upon a delicate constitutional balance where rights and duties operate in tandem. Law enforcement agencies are entrusted with the solemn responsibility of maintaining order, enforcing the law, and protecting the life, liberty, and property of citizens, whereas citizens, in turn, are equally bound to respect lawful authority and refrain from obstructing the due process of law. Neither can the State functionaries be permitted to act beyond the confines of law, nor can citizens be allowed to undermine the authority of lawful institutions through unfounded allegations or disruptive conduct. This Court is conscious of the fact that if either side is permitted to operate in isolation from the other, without accountability, restraint, or legal discipline, the result would inevitably be a constitutional imbalance leading to disorder and institutional friction. The law does not envisage a regime where either blanket immunity is granted to law enforcement

agencies, nor does it countenance a situation where unsubstantiated allegations are allowed to erode institutional credibility. Both citizens and State functionaries are, therefore, bound by reciprocal obligations flowing from the same constitutional fabric. It is for this reason that this Court must emphasize that a careful demarcation of jurisdiction, authority, and responsibility is indispensable. Each actor within the constitutional structure must remain within the limits of his lawful domain, ensuring that no encroachment occurs into the jurisdiction of the other. If this balance is disturbed, the inevitable consequence would be institutional conflict, erosion of public trust, and a breakdown of the orderly administration of justice, an outcome which the constitutional framework of this country cannot and does not permit under any circumstances.

9. This Court is conscious that the foregoing discourse may appear, at first sight, to travel slightly beyond the immediate contours of the present *lis*, however, inasmuch as it bears an intrinsic and implied nexus with the factual and institutional dimensions of the

controversy, this Court deems it appropriate to briefly advert thereto, with a view to contextualize and better appreciate the broader implications arising in matters of similar nature. The purpose of such reference is not to expand the scope of adjudication, but rather to illuminate the factual matrix and recurring patterns which frequently surface in proceedings of this kind. It is a matter of judicial notice that, with increasing frequency, allegations of police high-handedness, harassment, and abuse of authority are being brought before Ex-officio Justices of Peace as well as before this Court. Day in and day out, petitions couched in the language of humiliation, intimidation, and unlawful interference are instituted, many of which, upon closer scrutiny, reveal overlapping civil disputes, private grievances, or collateral assertions arising out of contentious interpersonal or property-related conflicts. While this Court is fully cognizant of and deeply sensitive to the constitutional guarantee of access to justice and the right of every citizen to seek redress against unlawful conduct of

State functionaries, it is equally bound to ensure that the judicial process is not converted into a forum for vexatious, frivolous, or pressure-driven litigation. It cannot be gainsaid that not all petitions or complaints are devoid of substance, indeed, there exist genuine cases involving excesses, misuse of authority, and unlawful deprivation of rights, which legitimately warrant judicial intervention. However, at the same time, it would be equally naive to ignore the emerging trend wherein, in a considerable number of cases, the invocation of jurisdiction, whether before an Ex-officio Justice of Peace or this Court, is employed as a mechanism to exert pressure upon law enforcement agencies, to obstruct lawful discharge of duties, or to gain leverage in underlying civil or criminal disputes. In certain instances, it has also been observed that complainants themselves may have antecedents or involvement in collateral disputes, including civil litigation or criminal allegations, thereby complicating the factual assessment required for appropriate judicial determination. If such matters are entertained

without careful scrutiny, and if directions are issued in a mechanical manner without filtering the substance from the superfluous, the inevitable consequence would be an undue burden upon the judicial system, contributing to backlog and, more importantly, diluting the seriousness of genuine grievances. Therefore, this Court is of the considered view that a calibrated and judicious approach is required, whereby only those matters which disclose *prima facie* credible material are permitted to proceed further, while frivolous or unsubstantiated allegations are appropriately sifted at the threshold. At the same time, this Court must emphasize that this does not, and cannot, mean that legitimate grievances against law enforcement agencies are to be discouraged or filtered out arbitrarily. On the contrary, where credible material exists indicating unlawful interference, dispossession, harassment, or abuse of authority, particularly in matters involving vulnerable individuals or property disputes, the law enforcement agencies are not only competent but duty-bound to intervene in accordance with law.

However, in civil disputes already pending before competent Courts, or in matters where judicial cognizance has been taken, any parallel interference by police authorities must be exercised with caution and within the confines of law, so as to avoid jurisdictional overlap and procedural conflict. Therefore, it is imperative to maintain a clear and workable distinction between cases warranting judicial intervention and those in which law enforcement agencies may appropriately act in aid of mediation, prevention of breach of peace, or facilitation of amicable resolution. If properly regulated, such an approach would not only strengthen institutional harmony between Courts and law enforcement agencies but would also ensure that citizens receive timely and effective relief without subjecting the system to avoidable strain. Ultimately, the objective is not to restrict access to justice, but to preserve its integrity by ensuring that the extraordinary jurisdiction of constitutional and statutory forums is invoked in *bona fide* cases alone, while simultaneously safeguarding the lawful authority of police institutions to act

against genuine instances of land grabbing, dispossession, and criminal interference in property rights. A balanced approach, rooted in restraint, legality, and institutional respect, is thus indispensable for maintaining both public confidence and the functional equilibrium of the justice delivery system.

10. Keeping in view the peculiar facts and circumstances of the present case, this Court has arrived at the considered conclusion that the applicants neither possessed any substantive material nor placed before the learned Ex-officio Justice of Peace any cogent, confidence-inspiring, or legally recognizable evidence capable of justifying the serious allegations levelled against the petitioners. The entire foundation of the application appears to rest upon bald, generalized, and unsubstantiated assertions of harassment and humiliation, which, without independent corroboration, unfortunately became the basis for the passing of the impugned observations and directions. What appears to have escaped proper judicial consideration before the learned Ex-officio Justice of Peace was the

fundamental question as to whether, within the framework of the jurisdiction conferred upon him under sections 22-A and 22-B Cr.P.C., he was lawfully competent to render such observations and issue such directions carrying adverse civil and professional consequences for the petitioners. Upon undertaking a careful examination of the relevant law on the subject, including its statutory scheme, historical evolution, and comparative jurisprudential understanding, this Court is persuaded to hold that the learned Ex-officio Justice of Peace, while passing the impugned observations, transgressed the lawful limits of his jurisdiction and inadvertently entered into a domain reserved for other competent authorities under the law. It further appears that the learned Ex-officio Justice of Peace failed to properly appreciate the true object, scope, and legislative intent underlying the conferment of powers under section 22-A Cr.P.C., as well as the limitations within which such powers are required to be exercised. A plain reading of the statutory provisions, when examined in juxtaposition with the allegations levelled by the

applicants, unmistakably leads this Court to the conclusion that the learned Ex-officio Justice of Peace fell into legal error while rendering the impugned observations and directions, and, in effect, adopted an interpretation of law which cannot be sustained on the touchstone of settled legal principles. In case of **A.R. Antulay v. R.S. Nayak (1988) 2 SCC 602**, the Supreme Court of India held that *jurisdictional limits are inherent and cannot be expanded through interpretation or implication, and any assumption of authority beyond statutory bounds renders the action void ab initio.*

Therefore, the impugned observations, being unsupported by legally ascertainable material and having been recorded in excess of the jurisdiction vested in the learned Ex-officio Justice of Peace, cannot be permitted to retain the force of law. Indeed, they unmistakably invite judicial interference by this Court in exercise of its constitutional jurisdiction. In order to prevent unnecessary prejudice to the petitioners and to preserve the delicate institutional balance contemplated by law, this Court is inclined to interfere in the

matter. Accordingly, the instant writ petition is allowed, the impugned order/observations are hereby set aside, and all consequential directions emanating therefrom shall stand recalled.

Announced

19.05.2026

Naqqash Haider

J U D G E

J U D G E

Division Bench.

Hon'ble Mr. Justice Sahibzada Asadullah, J.

Hon'ble Ms. Justice Farah Jamshed, J.